

Court No. - 3

Case :- WRIT - C No. - 39057 of 2023

Petitioner :- Ravindra Kumar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Satish Kumar Pandey, Anil Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Contention of the learned counsel for the petitioner is that when his land is situated in a village and he was using the electricity for operating his tubewell for the irrigation of his field then even if the electricity supply is made through urban feeder, the billing should be done as per the rural rate.

Learned counsel for the petitioner may bring the law in support of his contention.

Learned counsel for the Electricity Department may also produce the relevant government orders which covers this case.

Place this petition as fresh on 7.12.2023.

Order Date :- 9.11.2023

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(Manoj Bajaj, J.) (Siddhartha Varma, J.)

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Hon'ble Siddhartha Varma, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

1. Instructions dated 05.12.2023 produced by Sri Ashutosh Dwivedi, Advocate is taken on record.

2. From the perusal of page 5 of the instructions dated 05.12.2023, we find that there are fixed rate for villages and urban areas. He is unable to explain as to why when the petitioner's land was situate in a village and he was using the electricity for tubewell for irrigation then why the urban charges were being applied to the petitioner.

3. Put up this matter as fresh on 09.01.2024.

Order Date :- 7.12.2023

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Petitioner :- Ravindra Kumar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Satish Kumar Pandey, Anil Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

On the request of learned counsel for the respondents, the case is passed over for the day.

Order Date :- 9.1.2024

Aditya Tripathi

Court No. - 21

Case :- WRIT - C No. - 39057 of 2023

Petitioner :- Ravindra Kumar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Satish Kumar Pandey, Anil Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Learned counsel for the respondent-Electricity Department seeks one week further time to complete his instructions.

2. Put up as fresh on 25.01.2024.

Order Date :- 17.1.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Court No. - 21

Case :- WRIT - C No. - 39057 of 2023

Petitioner :- Ravindra Kumar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Satish Kumar Pandey, Anil Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Learned counsel for the respondent-Electricity Department is permitted to file counter affidavit within two weeks.
2. The petitioner will have one week thereafter to file rejoinder affidavit.
3. List as fresh on 15.02.2024.

Order Date :- 25.1.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Court No. - 21

Case :- WRIT - C No. - 39057 of 2023

Petitioner :- Ravindra Kumar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Satish Kumar Pandey, Anil Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Rejoinder affidavit filed today is taken on record.
2. Counter affidavit said to have been filed in the Registry on 15.2.2024 is not on record. Office is directed to trace the same and place it on record.
3. List as fresh on 29.2.2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.2.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 39057 of 2023

Petitioner :- Ravindra Kumar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar, Satish Kumar Pandey

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner has challenged the order dated 24.08.2023 passed by respondent No. 2. i.e. Executive Engineer, Vidhut Vitran Khand-1, Dakshinanchal Vidhut Vitaran Nigam Ltd., Mainpuri.
2. It is in fact a communication sent to the petitioner informing him that his premises was being supplied the electricity that is private tube-well by electricity line emanating from an urban feeder and therefore, urban tariff would apply. The bills were being wrongly issued under the rural tariff.
3. The case of the petitioner is that as a result of change in tariff from rural to urban, there has been a difference of more than Rs.5000/- in electricity bills every month.
4. Counsel for the respondent, Electricity Department, tried to contend that the tariff is determined on basis of the nature of feeder i.e. rural or urban. Since the supply was through urban feeder, therefore, urban rate schedule would apply.
5. On the other hand, counsel for the petitioner submitted that the petitioner was using the tube-well only for agricultural purposes and therefore, the action of the respondents in changing the tariff plan was illegal.

6. In our opinion, the issue involved would fall for adjudication in terms of Clause 7.10 of the U.P. Electricity Supply Code, 2005 by the Consumer Grievance Redressal Forum and therefore, we permit the petitioner to approach the said forum with his complaint within three weeks along with true attested copy of the instant order and in which event, the same will be decided by the forum in accordance with law. In case application is filed as stipulated above, it will be decided within next eight weeks.

7. The petition stands disposed of.

Order Date :- 29.2.2024

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(Kshitij Shailendra,J.)

(Manoj Kumar Gupta,J.)